

C.C.R.B CASE CLOSING FORM

Investigator assigned: George		Team: 5	CCRB#: 9901848	☒ Force ☒ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury	
Date of incident: 4/16/99	Time of incident: 7:30 PM	Location of incident: § 87(2)(b) Street, apt. # § 87(2)(b)		Pct. of occurrence: 077	Date S.O.L. Expires: 10/16/00
Date reported: 4/18/99	Time reported: 12:05 PM	To whom/where/how reported: Complaint made in person to the 77th Precinct by the complainant			
Complainant: § 87(2)(b)		Home address: § 87(2)(b) Street, apartment § 87(2)(b) § 87(2)(b)			
Victim(s): § 87(2)(b) § 87(2)(b)		Home address: Same Same			
Witness(es): None		Home address:			
Subject officer(s) (include rank): PO Mervin Bennett PO Anthony Pagnotta		Shield: 23183 10817	Tax: 920019 920691	Command: 77th Pct Tracer unit 77th Pct Tracer unit	
Witness officer(s) (include rank): None		Shield:	Tax:	Command:	

Allegation(s) by letter:	Recommendation(s):
A. Force, PO Bennett engaged in conduct prejudicial to good order when he pointed his gun at § 87(2)(b) in violation of PG 104-1. B. Abuse, PO Bennett abused his authority when he entered the premises without a warrant, and ordered § 87(2)(b) who was in her bedroom, to exit her room, in an almost nude condition, and walk toward him in the hallway with her hands in the air, after § 87(2)(b) had already surrendered, in violation of PG 116-50. C. Force, PO Bennett used excessive force when he physically threw § 87(2)(b) against the wall of the apartment, in violation of PG 104-1. D. Abuse, PO Bennett abused his authority when he searched § 87(2)(b) pockets, in violation of PG 116-33. E. Force, PO Bennett engaged in conduct prejudicial to good order when he pointed his gun at § 87(2)(b) head as she lay on the bed, in violation of PG 104-1. F. Discourtesy, PO Bennett was discourteous when he shouted at § 87(2)(b) and the other occupants of the house to "Get the fuck on the floor," and " whoever ran into the apartment, come the fuck out," in violation of PG 104-1. G. Abuse, PO Pagnotta abused his authority when he entered the premises without a warrant, in violation of PG 116-50.	§ 87(2)(g) A. [REDACTED] B. [REDACTED] C. [REDACTED] D. [REDACTED] E. [REDACTED] F. [REDACTED] G. [REDACTED]

Synopsis

PO Bennett and PO Pagnotta, while conducting a quality of life patrol - referred to as a vertical -, saw § 87(2)(b) who was standing outside of his apartment door, with what, in their opinion, appeared to be a marijuana cigarette. § 87(2)(b) saw the police officers and ran into the apartment, which was behind him. PO Bennett and PO Pagnotta then pursued § 87(2)(b) into the apartment. The occupants in the apartment were ordered to lie on the floor by PO Bennett, who with gun in his hand, asked for the person who ran into the apartment to come out. § 87(2)(b) surrendered to the police officers and was then taken to the 77th Precinct where he was given a desk appearance ticket § 87(2)(a) 160.50

Summary of Complaint

On April 16, 1999 at approximately 7:28 PM, § 87(2)(b) stated that she was feeling tired so she went and lay down on her mother's bed. § 87(2)(b) stated that no sooner had she lay down on the bed that she heard people yelling, "Get down on the fucking floor". § 87(2)(b) stated that she was lying on her back, and she saw a short black bald headed male pointing a gun at her and yelling, "Get the fuck down". § 87(2)(b) stated that she was already lying down so she did not move. § 87(2)(b) stated that from where she was lying she could see men dressed with raincoats with guns in their hands going towards the back of the apartment. § 87(2)(b) stated that she saw her niece, § 87(2)(b) walking almost naked from the rear of the apartment with her hands in the hair. § 87(2)(b) stated § 87(2)(b) was only wearing her panties and a bra. According to § 87(2)(b) § 87(2)(b) was saying, "Why are you doing this?" § 87(2)(b) stated that after § 87(2)(b) came from one of the rear rooms in the apartment, soon after her son, § 87(2)(b) came out from the back with his hands in the air and told the officers, "It's me you want, I don't want you'll shooting my family". § 87(2)(b) stated that the officers then took § 87(2)(b) out of the apartment and left.

§ 87(2)(b) stated that almost immediately they got dressed and went down to the 77th Precinct. § 87(2)(b)

stated that a little while after arriving at the precinct, she saw the officers bring § 87(2)(b) into the waiting room. § 87(2)(b) stated that a sergeant on duty at the precinct told her that she should not file a civilian complaint because she would only bring a lot of trouble on herself. § 87(2)(b) also stated that the sergeant also told her that she should not tell anyone that he had told her not to file a civilian complaint. § 87(2)(b) stated that she told her son, § 87(2)(b) and § 87(2)(b) what the sergeant told her. § 87(2)(b) stated that the next day she went back to the 77th Precinct and filed a civilian complaint.

Results of Investigation

On April 16, 1999 at approximately 7:28 PM, § 87(2)(b) stated that he was standing outside of the door of his apartment at § 87(2)(b) Street, Apartment § 87(2)(b). § 87(2)(b) stated that he was speaking to a female friend who then left and went into the apartment to use the bathroom. According to § 87(2)(b) no sooner had his friend gone into the apartment that his cousin's baby mother came and stood right behind him on the § 87(2)(b) floor, outside of the apartment door. § 87(2)(b) stated that he turned his head and looked down the stairs, which was next to his apartment, and saw men with guns pointed at him. § 87(2)(b) stated that he immediately ran into his apartment and into his room.

About two minutes later, according to § 87(2)(b) he heard voices yelling, "Get on the floor, everybody get on the floor". § 87(2)(b) then stated that he heard one of the men saying whoever ran into the apartment should come out. § 87(2)(b) stated that he decided to come out of the room because he knew that he was the one that they were referring to. According to § 87(2)(b) he crawled out of the room with his hands raised. § 87(2)(b) stated that when he came out into the living room, he saw that all of his family was lying on the floor. § 87(2)(b) stated that immediately after he came out of the room a short baldheaded black stocky officer and a taller Hispanic/White officer with straight hair grabbed him and threw him against the wall. § 87(2)(b) stated that the officers patted him down about three times, and then searched his pockets. § 87(2)(b) stated that he was then handcuffed and taken to the 77th Precinct. § 87(2)(b) stated that he was kept there until the officers checked to see if he had any outstanding warrants. § 87(2)(b) stated that he was released about 8:30 PM and given a summons § 87(2)(a) 160.50. § 87(2)(b) stated that the officer alleged that he was smoking marijuana. § 87(2)(b) stated that he was not smoking any marijuana and the officers did not find anything on him.

§ 87(2)(b) stated that he was recently released from prison and was on parole. § 87(2)(b) also stated that the reason why he ran when he saw the men pointing the guns at him was because he was on parole, and furthermore he did not know if the men were police officers. § 87(2)(b) stated that both of the officers were wearing raincoats.

§ 87(2)(b) stated that she had just arrived home from work and was in her bedroom at § 87(2)(b) Street, apartment § 87(2)(b). According to § 87(2)(b) she was in her underwear talking on the telephone. § 87(2)(b) stated that her grandmother, aunt, friend, and about six children were out in the living room. § 87(2)(b) stated that there was a lot of noise and playing coming from the living room. § 87(2)(b) stated that her nephew § 87(2)(b) came running into her bedroom while she was still semi-naked. § 87(2)(b) stated that she thought that he was playing because of the noise that was coming from the living room. However, according to § 87(2)(b) § 87(2)(b) told her that the cops were chasing him.

Almost simultaneously, § 87(2)(b) stated that she heard someone shouting "Everybody get the fuck down!" § 87(2)(b) stated that she became very alarmed because she did not know what was happening. § 87(2)(b) stated that she then heard the same person saying, "Whoever ran into the apartment, come the fuck out". § 87(2)(b) stated that the officer kept shouting for everyone to come out of the rooms. § 87(2)(b) stated that her nephew § 87(2)(b) decided that he was going to go outside because he did not want anyone to get hurt. According to § 87(2)(b) § 87(2)(b) got on his knees and with his hands outstretched made his way out of her bedroom.

§ 87(2)(b) stated that § 87(2)(b) told the officers, "It's me you want, don't hurt my family". § 87(2)(b) stated that even though § 87(2)(b) left the bedroom, the officer continued to say "Everyone come the fuck out". § 87(2)(b) stated that she heard § 87(2)(b) telling the officers "My cousin is naked". According to § 87(2)(b) the officer insisted that everyone should "Come the fuck out of the bedroom". § 87(2)(b) stated that she then outstretched her hands, and in her panties and bra walked into the living room.

§ 87(2)(b) stated that when she came out into the living room she saw about six officers with guns pointed at everyone in the living room. § 87(2)(b) stated that there was one particular baldheaded black officer who kept cursing and saying "Everybody stay the fuck down". § 87(2)(b) stated that the only person that was not down on the floor was her grandmother, who was arthritic and could not get out of her chair. § 87(2)(b) stated that her aunt was lying on her grandmother's bed, which was in a corner in the living room. According to § 87(2)(b) her aunt § 87(2)(b) was lying on the bed and the bald headed officer was still telling her to "get down". § 87(2)(b) stated that § 87(2)(b) told the officer that she was already lying down. § 87(2)(b) stated that the officers went and looked into the bedrooms and then handcuffed § 87(2)(b) and took him away.

§ 87(2)(b) stated that all of the officers were wearing raincoats because it was raining that evening. § 87(2)(b) stated that she got dressed and together with her aunt § 87(2)(b) immediately went to the 77th Precinct. § 87(2)(b) stated that when they arrived at the 77th Precinct, Kenneth was already about to be released. § 87(2)(b) stated that § 87(2)(b) spoke to the Lieutenant on duty and he told her that § 87(2)(b) would be given a summons and released. § 87(2)(b) stated that the Lieutenant tried to dissuade her aunt from filing a civilian complaint by telling her that the officer was new and that he was recently transferred from the Bronx. § 87(2)(b) stated that the officer that was at the apartment earlier, PO Bennett came and apologized to her and her aunt. § 87(2)(b) stated that PO Bennett told them that he too had a family and that he would even return to the apartment and apologize to her grandmother. § 87(2)(b) also stated that the sergeant on duty at the desk also tried to dissuade her aunt from filing a civilian complaint. § 87(2)(b) stated that her aunt was insistent in filing a complaint, and she collected the form and returned the next day to file her civilian complaint at the 77th Precinct.

PO Mervin Bennett stated that he was assigned to the Tracer Unit. PO Bennett stated that they were investigating allegations of drug activities in the apartment building at § 87(2)(b) Street. PO Bennett stated that his sergeant had given him the keys to the building, and he and his partner PO Pagnotta went to do a vertical (Walking up the stairs of the building to the roof and then returning back down the stairs) in the building. PO Bennett stated that he and PO Pagnotta entered the building at § 87(2)(b) Street on the § 87(2)(b) floor. PO Bennett stated that he and his partner then began to ascend the stairs to the § 87(2)(b) floor when he noticed two females and a male standing on the § 87(2)(b) floor. PO Bennett stated that he saw the male, whom he later knew to be § 87(2)(b) with what appeared to be a marijuana cigarette in his hand. PO Bennett stated that he was able to identify the object as marijuana because of his training and experience in dealing with narcotics. PO Bennett stated that as soon as § 87(2)(b) saw him, he immediately ran into the apartment (b). According to PO Bennett, he did not even have the opportunity to say, "Police, don't move!"

PO Bennett stated that he immediately gave chase through the open door and into the apartment in which § 87(2)(b) had fled. PO Bennett stated that before he entered the apartment he said, "Police, come out!" PO Bennett stated that once no one came out, he and his partner then entered the apartment with their guns drawn. PO Bennett stated that once they entered the apartment, he ordered all of the occupants to get down on the floor. PO Bennett stated that there were some children and a few adults in the apartment. PO Bennett stated that it was his impression that they were having a party or some social event. According to PO Bennett, he did not want to pursue any farther into the apartment so he called for back up. PO Bennett stated that he and PO Pagnotta never proceeded beyond the living room of the apartment because he did not know whose apartment it was or what danger lurked in the apartment. PO Bennett stated that § 87(2)(b) was not in the immediate vicinity of the living room so he ordered everyone in the rear rooms of the apartment to come out. PO Bennett stated § 87(2)(b) came out of the rear room with his hands outstretched before him and crawling on the floor. According to PO Bennett, as soon as § 87(2)(b) came out of the passageway that led from the bedrooms to the living room, PO Pagnotta placed § 87(2)(b) in handcuffs. PO Bennett stated that soon after § 87(2)(b) came out of the bedroom in the rear of the apartment, a female § 87(2)(b) who was undressed came out of the bedroom. According to PO Bennett, about the

same time back up arrived in the apartment and § 87(2)(b) was taken downstairs to the van.

PO Bennett stated that at no time did he touch § 87(2)(b) because his attention was focused on the hallway leading to the rear of the apartment. PO Bennett stated that it was his partner that handcuffed § 87(2)(b). PO Bennett stated that he could not say which officer frisked § 87(2)(b) because he was focused on the rear of the apartment. PO Bennett stated that § 87(2)(b) was already taken downstairs to the prisoner van while he was still in the apartment. It was during this time, according to § 87(2)(b) that he noticed a female lying on a bed in the vicinity of the living room. According to PO Bennett, the room was dark so he ordered the female § 87(2)(b) to come out of the room. PO Bennett stated that § 87(2)(b) refused to come out of the room. PO Bennett stated that he informed his sergeant of the situation and his sergeant told him to forget it and leave the apartment. PO Bennett stated that he then left the apartment and returned to the 77th Precinct.

According to PO Bennett, later that evening he saw one of the females that was in the apartment and he was explaining to her why he pursued § 87(2)(b) into the apartment. PO Bennett stated that he also told the female § 87(2)(b) that he understood how they felt when he entered the apartment. PO Bennett stated that he knew that the situation could be traumatic so he even told § 87(2)(b) that if it was necessary that he would go to the apartment and apologize to her grandmother, who was present in the apartment at the time of his pursuit of § 87(2)(b). PO Bennett stated that he did not speak with § 87(2)(b) at the 77th Precinct because she was acting in a belligerent manner. PO Bennett stated that § 87(2)(b) was given a summons § 87(2)(a) 160.50 and released from the 77th Precinct. PO Bennett acknowledged that no marijuana was found on § 87(2)(b). PO Bennett also stated that on that particular day it was raining and they were wearing raincoats.

PO Anthony Pagnotta stated that on April 16, 1999 he was assigned to a foot post on Nostrand Avenue in Brooklyn with his partner PO Bennett. PO Pagnotta stated that his sergeant had given him and PO Bennett the key to the building at § 87(2)(b) Street so that they can do a vertical. PO Pagnotta stated that he and PO Bennett went to the building and entered the said premises at approximately 7:30 PM. According to PO Pagnotta, he was going to call in to the Precinct that they were about to begin the vertical, but at the same time a female was leaving the building so they entered the open door. PO Pagnotta entered the building and before he could ascend the stairs he smelled the aroma of Marijuana. PO Pagnotta said he was able to identify the smell based on his professional experience and training in narcotics. PO Bennett preceded PO Pagnotta up the stairs. PO Pagnotta stated that he heard voices coming from above, and it sounded like a male and two females were talking.

PO Pagnotta said that from where he was, behind PO Bennett, he could see § 87(2)(b) with a marijuana cigarette in his left hand, speaking to two girls. PO Pagnotta said that § 87(2)(b) was standing on the uppermost two steps with his legs on the first and second steps, leaning forward speaking to the girls who were standing to his left on the § 87(2)(b) floor. PO Pagnotta stated that § 87(2)(b) saw them and before PO Bennett could say, "Police, don't move," § 87(2)(b) took off and ran into the apartment which was immediately at the top of the stairs. PO Pagnotta stated that PO Bennett immediately pursued § 87(2)(b) to the open door and shouted, "Police, come out!" PO Pagnotta stated that PO Bennett repeated his command about three times before he entered the apartment after § 87(2)(b). PO Pagnotta entered the apartment behind PO Bennett and proceeded down a fifteen-foot long hallway. PO Pagnotta stated that it was only after they entered the apartment that they took their guns out and held them to their sides, pointing towards the floor. PO Pagnotta said that he proceeded to the end of the hallway and kept under cover, while PO Bennett proceeded into the living room, which was immediately to the left at the end of the hallway.

PO Pagnotta stated that he did not go into the living room, but remained at the end of the hallway covering PO Bennett. PO Pagnotta said that there were a couple of women and children in the living room, and PO Bennett asked them where § 87(2)(b) had fled. Everyone said that they did not see anyone come into the apartment. PO Pagnotta said that at that point PO Bennett ordered everyone to lie on the floor. PO Pagnotta said that PO Bennett then told him to call for help (10-85). PO Pagnotta said he then asked one of the women what apartment it was and she replied that it was § 87(2)(b). PO Pagnotta stated that he then put in the call for backup. PO Pagnotta stated that he then saw § 87(2)(b) coming out of one of the rear rooms, crawling on the floor with his hands outstretched before him. PO Bennett then ordered § 87(2)(b) to stand up and come out with his hands in the air and walking backwards. PO Pagnotta stated that no sooner had § 87(2)(b) walked past PO Bennett that a dozen other officers

came rushing into the apartment. PO Pagnotta said that there were two sergeants with the other officers, and his sergeant ordered him to handcuff § 87(2)(b). PO Pagnotta said that two officers helped him handcuff § 87(2)(b) and then took him downstairs to the van. PO Pagnotta said that he and PO Bennett remained in the apartment and then the sergeant instructed them to leave the apartment because there was too much confusion. PO Pagnotta stated that once outside of the apartment, they looked for the marijuana cigarette but was unable to find it. PO Pagnotta said that § 87(2)(b) was frisked downstairs at the van and again at the precinct. PO Pagnotta stated that § 87(2)(b) was detained at the 77th Precinct while checks for outstanding warrants were made. PO Pagnotta said that once no warrants were found, § 87(2)(b) was given a summons § 87(2)(a) 160.50 and then released. § 87(2)(b), § 87(2)(g)

Conclusions and Recommendations

Allegation A states that PO Bennett engaged in conduct prejudicial to good order and discipline of the police force when he pointed his gun at § 87(2)(b) as he came crawling out of the bedroom. § 87(2)(b), § 87(2)(g)

Though PO Bennett denied that his gun was pointed, but admitted that it was out. PO Bennett was in pursuit of § 87(2)(b) who in his opinion had committed an infraction of the law. § 87(2)(g), § 87(2)(b)

Allegation B deals with the unlawful entry and abuse of authority by PO Bennett in entering the apartment of § 87(2)(b) and further subjecting the occupants of the apartment to his authority. § 87(2)(b), § 87(2)(g)

1. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Under the "hot pursuit" theory, "...a suspect may not thwart an otherwise proper arrest, set in motion in a public place, by escaping into his residence," (Kamins, pp. 189; encl. 1). § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

According to PO Pagnotta, PO Bennett had maintained his attention down the hallway towards the back of the apartment where § 87(2)(b) subsequently exited. § 87(2)(g)

Allegation E states that PO Bennett engaged in conduct prejudicial to good order and discipline of the New York police department when he pointed his gun at § 87(2)(b) head as she lay on the bed. PO Bennett admitted that he did see § 87(2)(b) lying on the bed, but he only ordered her to get on the floor. PO Bennett stated that his gun was always in his hand by his side and he never pointed it at anyone, including § 87(2)(b). PO Pagnotta also stated that PO Bennett's gun was out of its holster, but that he held it by his side. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) did say that she saw PO Bennett telling § 87(2)(b) "Get down," but she never said that PO Bennett was pointing his gun at § 87(2)(b) head. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that she heard someone yelling, "Everybody get the fuck down!" § 87(2)(b) said that she was in her room at the rear of the apartment when she heard the yells. § 87(2)(b) stated that she also heard the same officer say, "Whoever ran into the apartment, come the fuck out!" According to § 87(2)(b) when she came out of the bedroom, almost naked in her panties and bra, she saw a short baldheaded black male shouting at everyone to "Get the fuck down!" § 87(2)(b) said that there were other officers in the apartment, but the short black baldheaded male was the one doing the talking. § 87(2)(b) also stated that the short baldheaded male (PO Bennett) was the one who pointed the gun at her and told her to "Get the fuck down!" § 87(2)(b), § 87(2)(g)

§ 87(2)(b) did state that PO Bennett came to her and offered to return to the house and apologize to her grandmother for his conduct. Also PO Bennett did admit in his interview that he offered to apologize to § 87(2)(b) mother for his actions which he claimed might have been "Very traumatic" to her. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Investigator:

Earl B. Long

Date:

09-07-99

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Supervisor: _____ Date: _____
Reviewed by: Babbar Date: 9.7.99
Reviewed by: _____ Date: _____